

Ram Kumar @ Virat Kaharwar @ Gullu v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 21 March 2024 · 2024:AHC:51524-DB · WRIT - C No. - 8091 of 2024 · **Petition disposed; 15 days to object; clause 6.8 to be followed.**

HEADNOTE

Writ petition challenging a notice of provisional assessment in an alleged electricity-theft case disposed of. Fifteen days' further time granted to file an objection. Respondent No. 4 to decide it in accordance with law, duly following clause 6.8 of the U.P. Electricity Supply Code, 2005. No final assessment had yet been passed.

FACTUAL SUMMARY

Ram Kumar alias Virat Kaharwar alias Gullu petitioned the Allahabad High Court against the State of Uttar Pradesh and four others, challenging a notice of provisional assessment dated 16 August 2023 issued by respondent No. 4 for alleged theft of electricity. On 13 March 2024 none appeared for him and the matter was put up as fresh. On 21 March 2024 counsel for the Electricity Department stated that no final assessment order had yet been passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to provisional assessment

HOLDING

The writ challenging the provisional assessment notice dated 16.08.2023 is disposed of by granting fifteen days' further time to file an objection, if any. Respondent No. 4 shall then decide that objection in accordance with law, and the procedure prescribed under clause 6.8 of the Uttar Pradesh Electricity Supply Code, 2005 shall be duly followed. No order of final assessment had yet been passed. ¶ 1-3

PRINCIPLE TAGS

fresh-objection-under-clause-6.8 The Court granted fifteen days' further time to file an objection against the notice of provisional assessment, to be dealt with under clause 6.8. ¶ 3

para-6.8-objection-alternate-remedy The writ was disposed of without examining the alleged theft, leaving any objection to be decided by respondent No. 4 in accordance with law under clause 6.8. ¶ 2-3

6.8-procedure-mandatory The Court directed that the procedure prescribed under clause 6.8 shall be duly followed while deciding the objection and proceeding to final assessment. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 16.08.2023 FOR ALLEGED THEFT OF ELECTRICITY IS SUSTAINABLE

No final assessment had been passed. Any objection filed within fifteen days is left to respondent No. 4 to decide in accordance with law. ¶ 1-3